

**Ref No.: BD-CW-SAMCO-ACE-LET-STR-35**

**18-December-2025**

**To:** ACE Project Management | Moharram Bakhoun

**Attention:** Eng. Abdulaziz Mohamed (Project Manager)

**Project Name:** The Big Business District.

**Contract/Package:** Civil Works.

**Subject:** Detailed Response to Your Letter No. BD-ACEPM-SAMCO-LET-019 and Final Clarification Regarding Variation Instruction No. BD-ACEPM-SAMCO-VI-0003

Dear Sir,

With reference to your letter No. BD-ACEPM-SAMCO-LET-019 dated 4 December 2025, which attempts to reinterpret our scope to include activities outside our discipline, we wish to provide final and unequivocal clarification of our position as follows:

**1. Flanges Are Not Part of the Concrete Structure and Are Unrelated to Its Stability**

- Buddle Flanges are mechanical connections used to link piping and mechanical/electrical fittings to the water tank.
- Their function is associated with the mechanical/electrical feeding, discharge, and control system, and they are not a structural element affecting the strength or stability of the tank.
- Their design and installation require specialized knowledge of pumping, control, and piping systems, which fall squarely within the scope of the MEP contractor.

**2. Your Interpretation of Sub-Clause 13.1 (Right to Vary) Is Incorrect**

Sub-Clause 13.1 does not authorize you to add new disciplines to the Contractor's scope.

- Had the flanges been required for structural purposes (e.g., strengthening tank openings), they would have been within our scope.
- However, your requirement relates to mechanical/electrical piping connections, which is explicitly outside our scope.

**3. There Is No Contractual Exception Requiring Us to Perform Work Outside Our Discipline**

The Contract does not obligate us to perform any work other than that specified under Civil and Structural Works.

- Even if we were to assume that flanges are "not MEP" (a technically unsupported assumption), they remain mechanical connection works, not concrete, reinforcement, or structural works.

#### 4. The Correct Path: Appointment of an MEP Contractor

We remain ready to provide coordination support only to the MEP contractor, as stipulated in the meeting minutes dated 28/09/2025.

- Any delay in appointing the specialized contractor is the responsibility of the employer, with emphasis on our non-responsibility for any delay resulting from this.

#### **SAMCO's Final Position:**

- We reject the execution of Variation Instruction No. VI-0003** because it:
  - Falls outside the contractual scope.
  - Relates to the MEP discipline.
  - Does not affect the structural integrity.
- We demand the appointment of an MEP contractor as soon as possible** to prevent further project delays and in consideration of everyone's time to prevent more correspondence.
- We reiterate once again our rejection of insisting on assigning these works to us, while reserving the right to take all necessary actions to ensure our rights are preserved according to the contract.**

**Based on the above, Samco Company affirms its complete rejection of any attempt to invoke the 'penalties or sanctions' clause included in the contract for works that fall outside the scope of the contract, as mentioned above.**

Best regards,

Eng./ Mohammed Sami Mohammed  
Project Director  
SAMCO National Construction



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